

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amanda Harouche	Team: Team # 1	CCRB Case #: 201409626	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/17/2014 1:00 PM	Location of Incident: 101st Precinct stationhouse	18 Mo. SOL 3/17/2016	Precinct: 101		
Date/Time CV Reported Fri, 09/19/2014 9:44 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 09/19/2014 9:44 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Drew Solomon	17527	946279	101 PCT
2. SGT Stavros Spanos	04800	943839	101 PCT
3. POM Paul Egerter	06776	948929	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Stavros Spanos	Abuse: Sgt. Stavros Spanos authorized the strip-search of § 87(2)(b)	A . Unsubstantiated
B . POM Drew Solomon	Discourtesy: PO Drew Solomon spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . SGT Stavros Spanos	Discourtesy: Sgt. Stavros Spanos spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Paul Egerter	Discourtesy: PO Paul Egerter spoke discourteously to § 87(2)(b)	D . Unsubstantiated

Case Summary

On September 17, 2014, around 1:00 p.m., § 87(2)(b) crossed Beach Channel Drive near the intersection of Beach 38th Street while cars were driving by, causing vehicles to stop short. Among those vehicles were Sgt. Stavros Spanos, PO Drew Solomon and PO Paul Egerter, of the 101st Precinct. Sgt. Spanos, PO Solomon and PO Egerter exited their vehicle to issue § 87(2)(b) a summons. § 87(2)(b) did not have valid identification. As a result, § 87(2)(b) was placed in handcuffs and transported to the 101st Precinct stationhouse for identification verification. Sgt. Spanos authorized the strip-search of § 87(2)(b) (**Allegation A**). After the strip search was concluded, the officers instructed § 87(2)(b) to go into a holding cell and allegedly used discourtesies while doing so (**Allegations B, C and D**) (encl. 2a-m). § 87(2)(b) was released from the stationhouse with a summons for § 87(2)(b) (encl. 3d-e).

Mediation, Notice of Claim, and Criminal Histories

§ 87(2)(b) rejected mediation. As of March 6, 2015, a Notice of Claim inquiry is pending with the Comptroller's Office. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

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§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 1d).
- Sgt. Stavros Spanos has been a member of the service for eight years and there are no substantiated CCRB allegations against him § 87(2)(g) (encl. 1a).
- PO Drew Solomon has been a member of service for seven years and there are no substantiated allegations against him (encl. 1b).
- PO Paul Egerter has been a member of the service for four years and there are no substantiated CCRB allegations against him. This is his first CCRB complaint (encl. 1c).

Findings and Recommendations

Explanation of Subject Officer Identification

Sgt. Spanos, PO Solomon and PO Egerter acknowledged interacting with § 87(2)(b)

Investigation Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Recommendations

Allegation A: Abuse of Authority – Sgt. Stavros Spanos authorized the strip-search of

§ 87(2)(b)

It is undisputed that § 87(2)(b) was not compliant with the desk search at the 101st Precinct station house and was strip-searched in a private area by PO Drew Solomon, PO Paul Egerter,

and Sgt. Stavros Spanos, upon his authorization. It is also not in dispute that no contraband was recovered during the strip search.

§ 87(2)(b) stated that as PO Solomon was feeling the outside of § 87(2)(b)'s left leg during the search at the front desk of the station house, PO Solomon felt § 87(2)(b)'s genitals from the outside of his pants. When § 87(2)(b) felt this he “went crazy” on the officers and yelled at PO Solomon and called him “a faggot” for touching § 87(2)(b)'s genitals. § 87(2)(b) took a big step back from PO Solomon. PO Solomon then told § 87(2)(b) that there was a possibility he could have narcotics on him. Sgt. Spanos then instructed PO Solomon to take him in the room and strip search him. § 87(2)(b) resisted being strip searched, told the officers that they were violating him and told them that what they were doing was illegal (encl. 2a-m).

Sgt. Spanos, PO Solomon and PO Egerter all have detailed memo book entries about the movements § 87(2)(b) was making in front of the desk and they corroborated this in their CCRB interviews. They all stated that § 87(2)(b) who was rear-cuffed, put both of his hands down the back of his pants and lifted his pelvis up in a way that made it appear as if he were pushing contraband up his rectum. PO Solomon stated that § 87(2)(b) began making this movement when he began feeling down § 87(2)(b)'s first leg. PO Solomon and Sgt. Spanos stated that when PO Solomon asked § 87(2)(b) what he was doing, § 87(2)(b) told him he was not doing anything. PO Solomon, Sgt. Spanos, and PO Egerter stated that when § 87(2)(b) was asked to remove his hands from his pants, he refused (encl. 3a-h, 4a-f, 5a-f).

The command log notes that § 87(2)(b) was strip searched due to his furtive movements in front of the desk and refusing to let go of his pants in the rear (encl. 6e).

Patrol Guide Procedure 208-05 regarding strip searches states that, “a supervisor will authorize a strip search only when an arresting officer has articulated a reasonable suspicion that the individual is concealing evidence, contraband, or a weapon. Note, this is a different standard than the probable cause required for the arrest (encl. 0a-c).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B: Discourtesy – PO Drew Solomon spoke discourteously to § 87(2)(b)

Allegation C: Discourtesy – Sgt. Stavros Spanos spoke discourteously to § 87(2)(b)

Allegation D: Discourtesy – PO Paul Egerter spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that after he was strip-searched, he refused to follow instructions to go into a holding cell that was in the same room. PO Solomon, Sgt. Stavros, and PO Egerter allegedly said, “Get your fucking ass in the cell,” “Don’t be an asshole,” and “Get in the fucking cell” while they pushed § 87(2)(b) into the cell. PO Egerter told § 87(2)(b) “Calm down man. Don’t be a fucking asshole man. Just get in the cell man (encl. 2e-m).” § 87(2)(b) did not allege these discourtesies in his phone statement or intake call (encl. 2a-d).

PO Solomon and PO Egerter both stated that § 87(2)(b) did not resist going into the cell and that he did not have to be asked multiple times to go into the cell. Sgt. Stavros stated that § 87(2)(b) had to be asked multiple times to go into the cell because he was verbally resistant. PO

Solomon, Sgt. Stavros and PO Egerter all denied using and hearing any officer use discourtesies with § 87(2)(b) including the alleged phrases (encl. 3a-h, 4a-f, 5a-f).

§ 87(2)(g)

Therefore, it is recommended that **Allegations B, C and D** be closed as **unsubstantiated**.

Team: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date